KASHRUT COURSE AT TIFERET EYAL

Does It Need the Mikveh? Immersing New Utensils

Kashrut Course, Part 4

Series: Kashrut, a six-part course at Tiferet Eyal, Hendon **Shiur:** Part 4 of the six-part Kashrut course, given by Dayan Daniel Kada at Tiferet Eyal, Tuesday 18 June 2019 (the first shiur after Shavuot)

These notes are based on an automatic transcript of the recording.

Introduction

After the philosophy of kashrut, vegetarianism, and meat and milk before Shavuot, the course moved on to **Tevilat Kelim**, immersing utensils in a mikveh. "It's relatively small, but there's a lot of details to it, and sometimes some misconceptions." The Rabbi covered the basics first and then some practical modern questions.

Part 1: The Source: The Spoils of Midian

Tevilat Kelim is one of the 613 mitzvot. Its source is at the end of Sefer Bamidbar, when the soldiers returned from the war with **Midian** carrying spoils, including utensils they did not want to throw away. **Elazar HaKohen** told them (Bamidbar 31:22-23):

As far as the gold, silver, copper, iron, tin and lead are concerned, **כָּל דָּבָר אֲשֶׁר יָבֹא בָאֵשׁ תַּעֲבִירוּ בָאֵשׁ וְטָהֵר אַךְ בְּמֵי נִדָּה יִתְחַטָּא** whatever was used over fire must be passed through fire and it will be clean, **but it must also be purified with the water of sprinkling**; and whatever was not used over fire shall be passed through water.

Two separate things: *hagalah* and *tevilah*

The verse describes **two different processes**, and people often confuse them:

	Hag'alat Kelim (kashering)	**Tevilat Kelim** (immersion)
What it deals with	Non-kosher food the utensil has **absorbed**	The utensil passing from **non-Jewish to Jewish ownership**
When	Whenever a utensil has absorbed something forbidden, new or old, from anyone	Whenever a food utensil is acquired from a non-Jew, even brand new
How	Fire or boiling water, depending on how it absorbed	Immersion in a mikveh

Don't make the mistake of thinking that a used utensil bought from a non-Jew can simply be dipped in the mikveh and used. If it has absorbed non-kosher food, it needs **kashering** too. And the reverse: kashering a second-hand utensil (as caterers sometimes do with large equipment) is **not enough**; because it came from a non-Jew, it also needs tevilah.

Most of us buy things new, so kashering does not usually arise, and the main issue is tevilah.

The Gemara

The Gemara (Avodah Zarah) codifies this: **Rav Nachman said in the name of Rabbah bar Avuha: new utensils bought from a non-Jew, which he never used, must be immersed in a mikveh**, and brings the verse from Midian as the source. This teaches that the two are **not linked**. There is an opinion that tevilah is only needed when kashering is needed; that is not the halachah. Even with no kashering at all, there must be tevilah.

Part 2: Why Immerse?

Usually you find many reasons for a mitzvah in the Gemara and Rishonim. Here, despite a great deal of searching, the Rabbi found **only two**, and the first is not really a reason.

1. **The Rosh (Rabbeinu Asher):** it is a ***gezeirat hakatuv***, a decree of Scripture that the finite mind cannot fully grasp.
2. **The Yerushalmi**, quoted by the **Ritva**: water is the source of life and has the power to transform. People once went to the mikveh to become pure; women still do. Most powerfully, water can change a person's entire identity: **conversion**. A convert who immerses changes his or her whole status, to the point that halachically the biological ties to his or her parents are severed.

Eating, as we saw in the first shiurim, is full of holiness. Just as a person who converts goes into the water, so a utensil taken from a non-Jew and about to be used for food, something we ingest, goes into the mikveh to be **elevated** for holy use. That is also why only **food** utensils need it.

Kasher first, then immerse

When a utensil needs both, the order is always **kashering first, then tevilah**, as with the spoils of Midian. If it was done the other way round, the tevilah must be **repeated**. Kashering is the **physical** refinement, expelling what was absorbed. Only after that can we deal with the **spiritual**, elevating it through the mikveh.

How you kasher depends on how it became non-kosher: ***kebol'o kach polto***, the way it absorbed is the way it is expelled. Sometimes boiling water is enough; sometimes it needs fire.

The severity of a Torah mitzvah

- One may **not use** a utensil before it has been immersed.
- There is even an opinion (not followed in halachah) that one should not **keep** unimmersed utensils in the house at all, in case one comes to use them.
- If an immersed utensil gets **mixed up** with similar unimmersed ones, we would normally follow the majority. But since this is a Torah obligation and easy to remedy, **immerse them**

again without a berachah. This only applies to utensils whose tevilah is required by the Torah.

Part 3: Which Materials?

Material	Status	Berachah?
Metals: aluminium, tin, iron, gold, silver, copper, lead, anything that can be smelted	**Torah** obligation (listed in the verse)	Yes
Glass	**Rabbinic**: the Hachamim decreed it because, like metal, it can be melted down and reformed	Yes
Pyrex	Same as glass (Chacham Ovadia Yosef): it is a type of glass	Yes
Plastic, nylon	**No tevilah** according to most poskim	No
Wood, earthenware, ceramics, porcelain, bone, ivory (uncoated)	**No tevilah**	No
Wood or earthenware **coated inside with metal**	Needs tevilah	Yes
Coated only on the **outside**, where food does not touch	No tevilah	No
Coated with **glass**	Tevilah	**No**

Rabbinic enactments generally carry a berachah, just like washing hands or lighting Chanukah candles, so glass is immersed **with** a berachah.

Glass (and Pyrex) does not absorb, so it never needs **kashering**. But it still needs **tevilah**.

Plastic

The poskim of the last hundred years have discussed plastic at length. Logically it is like glass: it can be melted and reformed. But glass itself is a **rabbinic enactment**, and we do not add to the enactments of the Hachamim. Plastic did not exist when they made the decree, so it is not included. Chacham Ovadia rules this clearly. Those who wish to be stringent may immerse plastic, but **without a berachah**, since one cannot bless on something one is not obligated to do.

Wood

"Sometimes you go to the mikveh and you see people toveling wood. You're just thinking to yourself where they got this from." Wood definitely does not need tevilah.

Coated items and glazed china

Coated wood or earthenware is only rabbinic, so whether a **glass coating** counts is a doubt, hence tevilah without a berachah. A member of the class asked about ordinary **glazed china**. The Rabbi said he would need to research exactly what modern glazes are made of; another participant noted that glazes are largely silica, the main ingredient of glass.

Part 4: Which Utensils?

Not everything that holds food needs tevilah.

The basic test

A utensil needs tevilah if:

1. Food or drink is **eaten or drunk directly from it** (plates, cups and so on); or
2. Food is **prepared** in it: made edible from inedible, or further prepared even if already edible.

Storage only

Spice jars and similar containers used only to **store** food, without eating from them or preparing food in them, **do not need tevilah**.

If a container is **brought to the table** with the meal (for example a **salt cellar**), some say it is part of the table settings and needs tevilah, so immerse it **without a berachah**. Many say even this is unnecessary. A container that never leaves the kitchen definitely needs nothing.

So when buying something, ask: will I eat from it? Drink from it? Prepare food in it? If none of these, will it be on the table? If not, it does not need the mikveh.

Primary use

Always go by the **primary use**:

- A **penknife** bought to cut fruit (unlikely) would need tevilah with a berachah. One bought for general use, even if you occasionally cut fruit with it, does not.
- A **kitchen knife** you use for building work does not need tevilah. You can change a utensil's designation.

Direct contact with food

Only utensils that **touch the food directly**:

- **Can opener, bottle opener**: no tevilah.
- **Tripod** under a pot: no tevilah.
- **Jar for tea bags**: no tevilah, even if it comes to the table, since the tea is always wrapped. A jar for loose tea granules that comes to the table would be different.
- In Israel, the holders for **milk bags**: no tevilah (they are plastic anyway, and the milk is always inside its bag).
- **Nutcracker**: it only opens the shell, but it is so bound up with the act of eating (unlike a can opener, which you put aside before eating) that it should be immersed **without a berachah**.

Inedible food

A utensil used only for food that is **not yet edible** does not need tevilah. The **dough hook of a Kenwood** mixer does not need it. The **Kenwood itself** generally does, since you can make ice cream in it, which is edible.

Part 5: From a Non-Jew Only

Rav Moshe Feinstein and Chacham Ovadia Yosef both conclude that tevilah is only required for something **bought from a non-Jew**.

Who counts: the owner or the workers?

What if a factory is owned by a Jew and staffed by non-Jews, or the reverse? **We follow the owner.**

- **"Made in China"** or anywhere with a non-Jewish majority: needs tevilah.
- **Made in Israel**: even if the workers may be non-Jews, the majority of factory owners are Jewish. If you buy it from a Jewish seller, **it does not need tevilah at all**. Be aware that much of what is sold in Israel is imported; being bought in Israel does not make it Israeli-made.
- **Borrowing** from a non-Jew: no tevilah.

Don't sell your utensils with the chametz

People sometimes sell their **utensils** together with their chametz before Pesach. A proper sale document sells only the **chametz within the utensils** (and, for those who are stringent, the absorbed chametz), not the utensils themselves. If one did sell the utensils, Chacham Ovadia's conclusion is that they do not need to be immersed again, since that was not the intention. But in the first instance, **do not sell the utensils**.

The coffee jar: Rav Moshe Feinstein's ruling

You finish a **jar of olives** or a **Nescafé jar** bought at Tesco and want to keep the nice glass jar for years. Glass, from a non-Jew: surely it needs tevilah?

Rav Moshe Feinstein: no. Such jars are made for **one-time use**, and **disposables** are not *kelim* and need no tevilah. The company is not selling you a container; it is selling you coffee or olives. When you later decide to use the jar permanently, ownership is not passing from a non-Jew to a Jew. The jar is already yours, and only its **use** has changed. So it **does not need tevilah**, even if you intended to reuse it when you bought it.

But some products, such as certain chocolate spreads, come in decorative glasses designed to be reused, where part of what you pay for is the glass. If you want to reuse such a glass, it is better to immerse it, probably **without a berachah**.

Part 6: Electrical Appliances

A new urn, blender or toaster: what do you do? The Rabbi first asked the class what they did, and heard a range of answers.

The least desirable option: nothing

A minority opinion holds that electrical appliances need no tevilah. Because they only work when plugged into the wall, they are considered **attached to the ground** (*mechubar lakarka*), and the ground does not become impure or need tevilah. **Chacham Ovadia and many others rejected this**: the appliance is its own utensil, and calling it part of the ground because it is plugged in is a large stretch.

Three better options, in order of preference

1. **Immerse it** and leave it to dry for **a day or two** (or three) before use. The Rabbi has done this many times without problems, though people have told him theirs broke. "I'm not taking responsibility for it." Used within an hour it would be a danger to life; after drying for days there is no danger to life, only to your money. And if it does break and you return it, you have to tell the shop you put it in water.
2. **Dismantle and reassemble it**, if you know how. Like melting metal down and recasting it, the utensil is then **made in your possession**, not transferred from a non-Jew. (A participant asked whether simply removing and replacing the fuse would count. The Rabbi said that fixing something is not making it, so it is questionable, though better than nothing.)
3. **Give it as an outright gift** to a non-Jewish neighbour and ask to **borrow it back** indefinitely. Something borrowed from a non-Jew does not need tevilah.

Toasters

Toasters are less of a problem. **Rav Moshe Feinstein** writes that a toaster does not need tevilah, since it only **warms** food that is already edible rather than preparing it. **Chacham Ovadia** says to immerse a toaster **without a berachah**.

Built-in ovens and microwaves

A built-in **oven** that is too heavy to lift is more like part of the house, part of the ground, though the Rabbi wanted to think about it further. A **microwave** does not really touch the food, which is always placed in a dish, so some say it does not need tevilah, even the glass plate inside. Again he wanted to give this more thought.

Part 7: Eating in the Home of a Non-Religious Jew

You are invited to a home that does not keep kashrut. Leave aside the food itself: if it is **cold**, the dishes and cutlery are **completely clean**, and the food is simple fruit or vegetables, there is no transfer of taste and no kashrut problem, even if the host eats non-kosher.

But there is a **tevilah problem**. A non-Jew's utensils do not need tevilah, but a Jew's do, and his have not been immersed. Your host may have gone to great lengths to buy food with the best hechsher, and only as you sit down do you realise the dishes are unimmersed.

- **Main halachah:** try not to get into this situation, since eating from such dishes is a problem.
- If it would genuinely **offend** the host, one may rely on the opinions that permit it. The main reason: when you borrow a utensil you have full use of it, so you would have to immerse it. A guest at a meal is only given the **right to use** the dishes for half an hour, which is not borrowing. (Most poskim do treat it as borrowing, hence the first instance.)

A non-kosher hotel breakfast

Using clean plates and cutlery for plain, cold fruit is fine in principle. In practice the Rabbi would not advise it unless you know what you are doing, because **sharp foods** (lemon, strong vegetables, even **radishes**) can draw out non-kosher absorptions even when cold. Plain **tomato, cucumber** or simple fruit is fine. **Bread** on a clean cold plate is fine; **butter** or anything fatty on a non-kosher plate is not. Taste only passes through **heat, fat or sharpness**.

Part 8: What About a Convert?

A question the Rabbi was asked a few months earlier. A convert has been keeping kosher for two or three years before conversion. Once they immerse and become Jewish, do their utensils need tevilah?

No. In the verse, it was the **utensils** that passed from non-Jewish to Jewish hands. Here the utensils stay with the same owner; it is the **person** who changes. The **Avnei Nezer** (the Sochatchover Rebbe) even suggests that when the convert goes into the mikveh, his possessions are elevated together with him, the same idea of transformed identity with which the shiur began. Someone who wants to be stringent may immerse them, **without a berachah**.

(In answer to a question: a non-religious Jew's utensils certainly do need tevilah, otherwise the dilemma in the previous section would not arise. If you acquire something from a Jew who you assume never immersed it, it needs tevilah.)

Summary

- Tevilat Kelim is a **Torah** mitzvah, learnt from the spoils of Midian. It is **separate from kashering**; when both are needed, **kasher first, then immerse**.
- Reasons: a decree of Scripture (Rosh), or, like **conversion**, elevating the utensil to holy use (Yerushalmi).
- **Metal:** Torah, with a berachah. **Glass and Pyrex:** rabbinic, with a berachah. **Plastic:** no tevilah. **Wood, earthenware, porcelain:** none unless coated inside with metal.
- Only utensils used to **eat, drink or prepare edible food**, in **direct contact** with it, judged by **primary use**. Table items such as salt cellars and nutcrackers: without a berachah.
- Only items **bought from a non-Jew** (follow the factory owner). Israeli goods from a Jewish seller and borrowed items need nothing.
- **Disposable jars** reused later need no tevilah (Rav Moshe Feinstein).
- **Electrical appliances:** immerse and dry, dismantle and reassemble, or gift and borrow back. Toaster: no tevilah per Rav Moshe, without a berachah per Chacham Ovadia.
- At a non-religious host's home, avoid unimmersed dishes if possible; if it would offend, there are opinions to rely on.
- A **convert** need not immerse his or her existing utensils.

Next week: Bishul Akum and Pat Akum: cooking and baking by a non-Jew, and what to know about the bread on supermarket shelves. Three more shiurim remain in the series.

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